

Tentative Rulings and Resolution Review Hearings
November 1, 2024
Butte Exchange (To be heard in Department 63)

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings appear on the calendar outside the court department on the date of the hearing, pursuant to California Rule of Court, Rule 3.1308(b)(1). As a courtesy to counsel, the court also posts tentative rulings no less than 12 hours in advance of the time set for hearing. The rulings are posted on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

BURGESS VS. ROWE

Case Number: 22CV-0200531

This matter is on calendar for review regarding trial re-setting. Plaintiff filed a declaration on October 22, 2024. It is unclear from the declaration whether this matter has settled or should be set for trial. The Court notes that the Complaint in this matter was filed on September 1, 2022 and finds the matter to be exempt from plan designation. The Court further notes that while Defendant has posted jury fees, Plaintiff has not. Plaintiff is granted ten days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding whether this matter should be set for trial. **An appearance is necessary on today's calendar.**

CREDITORS ADJUSTMENT BUREAU, INC., VS. CASTRO

Case Number: 23CVG-00362

Tentative Ruling on Motion for Terminating Sanctions: Plaintiff Creditors Adjustment Bureau, Inc. moves for terminating sanctions against Defendant Vincent Paul Castro. Plaintiff also requests monetary sanctions in the amount of \$1,573.75. Defendant filed an Opposition on October 29, 2024, which was six court days late for a November 1, 2024 hearing. CCP § 1005(b). The Opposition did not include a proof of service. Despite the untimeliness and lack of service on Plaintiff, the Court has considered the Opposition as this is a dispositive motion and the Court intends to afford Defendant every opportunity to present his defense to the motion.

Terminating Sanctions. Pursuant to CCP § 2023.030(b-d), the Court may impose issue, evidentiary, or terminating sanctions against a party that engages in the misuse of the discovery process. Misuse of the discovery process includes failing to respond to or submit to an authorized method of discovery and disobeying a court order to provide discovery. CCP § 2023.010(d) and (g). Terminating sanctions are a "drastic penalty and should be used sparingly." *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal. App. 4th 566, 604. A terminating sanction should not generally be imposed by the court until less severe sanctions have been attempted and were unsuccessful. *Id.*

Plaintiff propounded Special Interrogatories, Set One and Request for Production, Set One on July 18, 2023. When no response was received, Plaintiff moved for an order compelling responses and for monetary sanctions. On April 5, 2024, the Court granted Plaintiff's motions to compel discovery responses. Defendant was ordered to provide responses to Special Interrogatories, Set One and Production of Documents, Set One no later than May 3, 2024. Monetary sanctions were imposed in the amount of \$1,920. On May 10, 2024, Plaintiff filed a Motion for Terminating Sanctions that was noticed for June 7, 2024. On June 7, 2024, the Court continued the Motion